



CHAPTER IV

An Act to confirm a Scheme of the Charity Commissioners for the application or management of the Charity called the Hospital of Robert Earl of Leicester in Warwick in the County of Warwick. [5th July 1956.]

WHEREAS the Charity Commissioners in their Report to Her Majesty of their proceedings during the year one thousand nine hundred and fifty-five reported that they had approved and certified a Scheme for the application or management of the Charity called the Hospital of Robert Earl of Leicester in Warwick in the County of Warwick:

And whereas it is expedient that the Scheme as the same is fully set out and defined in the schedule to this Act should be confirmed:

Be it therefore enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The said Scheme is hereby confirmed:

Confirmation
of Scheme.

Provided always that nothing in this Act or in the said Scheme shall be held to interfere with the ordinary jurisdiction over endowed charities now exercisable by the High Court of Justice and the Charity Commissioners.

2. This Act may be cited as the Hospital of Robert Earl of Leicester Charity (Warwick) Scheme Confirmation Act 1956.

SCHEDULE

SCHEME FOR THE APPLICATION OR MANAGEMENT OF THE CHARITY CALLED
THE HOSPITAL OF ROBERT EARL OF LEICESTER, IN
WARWICK, IN THE COUNTY OF WARWICK, COMPRISED IN
THE FOLLOWING INSTRUMENTS:—

ACT OF PARLIAMENT 13 ELIZ. I c. XVII;
DEED DATED THE 21ST NOVEMBER 1585;
ORDINANCES, STATUTES AND RULES MADE BY ROBERT EARL OF
LEICESTER ON THE 26TH NOVEMBER 1585;
DEED DATED THE 30TH NOVEMBER 1585;
TWO DEEDS BOTH DATED THE 6TH JUNE 1589;
ACT OF PARLIAMENT 39 ELIZ. I c. 5 (PRIVATE);
ACT OF PARLIAMENT 53 GEO. III c. 213 (LOCAL AND PERSONAL);
THE ROBERT EARL OF LEICESTER'S HOSPITAL CHARITY SCHEME
CONFIRMATION ACT 1926;

INCLUDING THE SUBSIDIARY ENDOWMENT THEREOF KNOWN AS THE
LOUISA HELEN TROLLOPE GIFT, COMPRISED IN A DEED OF
GIFT DATED THE 16TH DECEMBER 1901.

1. *Administration of Charity.*—From and after the date of this Scheme the above-mentioned Charity and the endowments thereof specified in the schedule hereto and all other the endowments (if any) of the Charity shall be administered and managed subject to and in conformity with the provisions of this Scheme under the title of Lord Leycester's Hospital.

2. *Dissolution of corporation.*—The corporation of the Master and Brethren of the Hospital of Robert Earl of Leicester in Warwick constituted by the above-mentioned deed dated the 21st November 1585 made in pursuance of the above-mentioned Act 13 Eliz. I c. XVII is hereby dissolved.

3. *Vesting.*—The lands specified in the schedule hereto are hereby vested in The Official Trustee of Charity Lands for all the estate and interest therein belonging to or held in trust for the Charity.

PATRON

4. *Patron.*—The Right Honourable William Philip, Viscount De L'Isle, V.C., P.C., and his successor for the time being as heir at law of the founder, Robert Earl of Leycester, if of full age, shall be the Patron of the Charity and shall have the powers hereinafter specified with relation to the Mastership.

VISITOR

5. *Visitor.*—The Bishop of Coventry for the time being shall be the Visitor of the Charity.

GOVERNORS

6. *Governors.*—The Charity shall be administered and managed by a Governing Body (hereinafter referred to as the Governors) consisting when complete of seven competent persons being—

Two Ex-officio Governors,
One Representative Governor and
Four Co-optative Governors.

7. *Ex-officio Governors.*—The Ex-officio Governors shall be—

The Patron and

Her Majesty's Lieutenant of and in the County of Warwick, both
for the time being.

8. *Representative Governor.*—The Representative Governor shall be appointed by the Council of the Borough of Warwick. Each appointment shall be made for a term of four years at a meeting convened and held according to the ordinary practice of the appointing body. The Town Clerk of Warwick shall notify forthwith to the Governors or their clerk the name of each person appointed. The person appointed may be but need not be a member of the appointing body.

9. *First Representative Governor.*—The following person shall be the first Representative Governor and subject to the provisions hereinafter contained for determination of Governorship shall be entitled to hold office as appointee of the said council for four years from the date of this Scheme:—

Guy Montague Nelson, of Emscote Mills, Warwick, Company Director.

10. *Co-optative Governors.*—The Co-optative Governors shall be persons residing or carrying on business in or near the Borough of Warwick.

11. *First Co-optative Governors.*—(1) The following persons shall be two of the first Co-optative Governors and subject to the provisions hereinafter contained for determination of governorship shall be entitled to hold office for the following periods respectively:—

The Right Honourable Charles Guy Fulke, Earl Brooke and of Warwick, for seven years from the date of this Scheme, and

The Honourable Edward Langton Iliffe, of 23 Carlton House Terrace, in the City of Westminster, for five years from the said date.

(2) The remaining first Co-optative Governors shall be appointed by the Governors at a special meeting of the Governors to be held as soon as possible after the date thereof.

12. *Future Co-optative Governors.*—Every future Co-optative Governor shall be appointed for a term of five years by a resolution of the Governors to be passed at a special meeting.

13. *Declaration by Governors.*—No person shall be entitled to act as a Governor whether on a first or on any subsequent entry into office until after signing in the minute book of the Governors a declaration of acceptance and of willingness to act in the trusts of this Scheme.

14. *Determination of governorship.*—Any Co-optative Governor who ceases to be qualified as aforesaid, any Representative or Co-optative Governor who is absent from all meetings of the Governors during a period of one year and any Governor who is adjudged bankrupt or makes a composition or arrangement with his creditors or who is incapacitated from acting or who communicates in writing to the Governors a wish to resign shall cease thereupon to be a Governor.

15. *Vacancies.*—Upon the occurrence of a vacancy in the office of Governor the Governors shall cause a note thereof to be entered in their minute book at their next meeting and in the case of a vacancy in the office of Representative Governor shall cause notice thereof to be given as soon as possible to the said Town Clerk. Any competent Governor may be re-appointed. No vacancy in the office of Co-optative Governor shall be filled until after the lapse of one calendar month from its occurrence.

MEETINGS AND PROCEEDINGS OF GOVERNORS

16. *Ordinary Meetings.*—The Governors shall hold at least two ordinary meetings in each year.

17. *First meeting.*—The first meeting of the Governors shall be summoned by Edward George Tibbits, of 36 High Street, Warwick, Solicitor, or if he fails for two calendar months after the date of this Scheme to summon a meeting by any two of the Governors.

18. *Chairman.*—The Patron shall be chairman of every meeting of the Governors at which he is present. The Governors at their first ordinary meeting in each year shall elect one of their number to be vice-chairman of their meetings until the commencement of the first ordinary meeting in the following year. The vice-chairman shall always be eligible for re-election. If at any meeting neither the chairman nor the vice-chairman is present within ten minutes after the time appointed for holding the same or there is no chairman or vice-chairman the Governors present shall choose one of their number to be chairman of the meeting.

19. *Special meetings.*—A special meeting may be summoned at any time by the Patron or the vice-chairman or any two Governors upon four days' notice being given to all the other Governors of the matters to be discussed.

20. *Quorum.*—There shall be a quorum when three Governors are present at a meeting.

21. *Voting.*—Every matter shall be determined by the majority of votes of the Governors present and voting on the question. In case of equality of votes the chairman of the meeting shall have a casting vote whether he has or has not voted previously on the same question but no Governor in any other circumstances shall give more than one vote.

22. *Minutes and accounts.*—A minute book and books of account shall be provided and kept by the Governors. All proper accounts in relation to the Charity shall be made out in each year and certified in such manner as the Charity Commissioners require and copies thereof shall be transmitted to the said Commissioners in compliance with the provisions of the Charitable Trusts Acts.

23. *General power to make regulations.*—Within the limits prescribed by this Scheme the Governors shall have full power from time to time to make regulations for the management of the Charity and for the conduct of their business including the summoning of meetings, the deposit of money at a proper bank and the custody of documents.

24. *Clerk.*—The Governors may appoint some fit person to be their clerk and to hold office during their pleasure and may pay to him (not being a Governor) such reasonable salary as they think fit.

THE MASTER

25. *The Master.*—(1) There shall be a Master of the Charity who shall have the government of the Brethren of the Charity subject to the general control and superintendence of the Governors.

(2) In the case of a vacancy in the office of Master the Governors may make such provision as they think fit for the discharge of the duties of the Master including the payment to any person appointed to carry out the duties of the Master of a salary not exceeding that paid to the Master.

26. *Saving for present Master.*—The provisions of this Scheme governing the powers, duties and functions of the Master shall apply as well to the Reverend John Naylor Frankland, M.A., D.Sc., the present Master, as to all future Masters but save as aforesaid nothing herein contained shall prejudicially affect the rights and privileges heretofore enjoyed by the said present Master.

27. *Right of appointment.*—The Patron shall have the right exercisable as hereinafter provided of appointing the Master.

28. *Vacancies.*—Upon the occurrence of a vacancy in the mastership the Governors shall cause notice thereof in writing to be given forthwith to the Patron. Unless the Patron fills the vacancy within two calendar months of its occurrence or within such extended period as may be allowed by the Charity Commissioners or if there is no Patron the Governors may fill the vacancy.

29. *Salary.*—The Master shall receive out of the income of the Charity a salary at the rate of not more than £300 a year or at such other rate as the Charity Commissioners prescribe from time to time.

30. *Master's House.*—The Master shall reside in and occupy the Master's House hereinafter mentioned free of rent and without liability for rates, repairs and insurance. He shall not let or otherwise part with the possession of the Master's House or any part thereof.

31. *Absence from Master's House.*—The Master shall not be absent from the Master's House for a period exceeding 7 days or amounting with previous periods of absence during the same year to more than 28 days without the consent of the Governors. Whenever the Master intends to be absent from the Master's House for a period exceeding three days he shall so inform the Governors or their clerk.

32. *Resignation.*—(1) The Master may resign his appointment at any time.

(2) The Patron or if there is no Patron the Governors may remove the Master at any time on account of age, infirmity, incapacity, neglect of duty or other sufficient cause.

(3) The Governors may request the Patron in writing to remove the Master for any of the above-mentioned reasons and if the Patron fails to give a decision on such a request within two months from the date thereof the Governors may remove the Master.

THE BRETHREN

33. *The Brethren.*—The Brethren shall be poor and deserving men who have served in the armed forces of the Crown being men of the particular classes hereinafter specified in order of preference that is to say:—

FIRST those men who were disabled during their service and who have resided for at least four years preferably in the Borough of Warwick, the Parish of Kenilworth or the Borough of Stratford upon Avon, all in the County of Warwick, or in the Parish of Wotton under Edge or the Parish of Arlingham, both in the County of Gloucester, but subject thereto anywhere in the County of Warwick;

SECONDLY those men who were not disabled during their service but who have resided as above mentioned;

THIRDLY those men who were disabled during their service but who have not resided as above mentioned.

USE AND MANAGEMENT OF REAL PROPERTY

34. *Use and management.*—The land and buildings for the time being belonging to the Charity (hereinafter referred to as the Charity Estate) shall be used and managed in accordance with the provisions hereinafter contained.

35. *User of Hospital.*—(1) The land and buildings of the Charity heretofore appropriated for the use of the Master and Brethren and such further part of the Charity Estate as the Governors from time to time with the approval of the Charity Commissioners may appropriate for the purpose shall be used for the residence of the Master and Brethren in conformity with the provisions of this Scheme: Provided that subject to the approval of the said Commissioners the Governors may let or alienate any part of the property so appropriated which is not for the time being required for such use.

(2) The property for the time being used for the purpose of this clause is referred to in this Scheme as the Hospital. That part of the Hospital which from time to time the Governors shall allot to the Master is referred to in this Scheme as the Master's House. Those parts of the Hospital which from time to time the Governors shall allot jointly or severally to the Brethren are together referred to in this Scheme as the Brethren's Quarters.

36. *Management of unappropriated property.*—The Governors shall let and otherwise manage any part of the Charity Estate not for the time being appropriated for use as aforesaid.

37. *Notice of letting.*—The Governors shall give public notice of the intention to let any property in such manner as they consider most effectual for ensuring full publicity.

38. *Leases.*—The Governors shall provide that on the grant by them of any lease the lessee shall execute a counterpart thereof. Every lease shall contain covenants on the part of the lessee for the payment of rent, the insurance of the buildings and all other usual and proper

covenants applicable to the property comprised therein and a proviso for re-entry on non-payment of the rent or non-performance of the covenants.

39. *Allotments Extension Act, 1882.*—The Governors may set apart and let in allotments in the manner prescribed by and subject to the provisions of the Allotments Extension Act, 1882, any part of the Charity Estate other than buildings and the appurtenances of buildings. 45 & 46 Vict.
c. 80.

40. *Restriction.*—The Governors shall not make or grant any sale, mortgage or charge of any part of the Charity Estate or any lease thereof in reversion after more than three years of any existing term or for more than 21 years certain or for less than the improved annual value at rack rent without the sanction of the Charity Commissioners or a competent court.

41. *Repair and insurance.*—The Governors shall keep in repair and insure for full value against fire all the buildings of the Charity not required to be kept in repair and insured by the lessees or tenants thereof.

APPLICATION OF INCOME

42. *Expenses of management.*—The Governors shall first defray out of the income of the Charity the cost of repairs and insurance and all other charges and outgoings payable in respect of the Charity Estate and all the proper costs, charges and expenses of and incidental to the administration and management of the Charity.

43. *Extraordinary Repair Fund.*—(1) Subject to any Order or Orders of the Charity Commissioners a fund for the extraordinary repair, improvement or rebuilding of the buildings of the Hospital shall be provided and maintained as follows.

(2) The Governors shall pay to The Official Trustees of Charitable Funds a yearly sum of not less than £150 out of the income of the Charity and the said Official Trustees shall invest the yearly sum so paid at compound interest in the purchase in their name to the credit of an account to be entitled Extraordinary Repair Fund of one or more of the stocks, funds and securities (other than real securities) authorised by law for the investment of trust funds.

44. *Benefit of Master and Brethren.*—Subject to the payments aforesaid and subject as hereinbefore provided with relation to the Master the Governors shall apply the income of the Charity for the benefit of the Master and Brethren in such ways as the Governors think fit from time to time.

45. *Reserve Fund.*—Subject to any Order or Orders of the Charity Commissioners all income of the Charity not for the time being required for immediate application, or as a working balance for future application, under the provisions of this Scheme shall be paid to The Official Trustees of Charitable Funds who shall invest the same to the credit of an account to be entitled Reserve Fund. The investments standing to the credit of the said account may be applied from time to time for the purpose of extending the Brethren's Quarters and any other purposes of the Charity under this Scheme.

PROVISIONS FOR APPOINTMENT, GOVERNMENT AND
REMOVAL OF BRETHREN

46. *Appointment of Brethren.*—The Brethren shall be appointed by the Governors. Every appointment shall be made at a special meeting.

47. *Saving for existing Brethren.*—Appointments of Brethren under this Scheme shall be made without prejudice to the interests of the existing Brethren.

48. *Notices.*—Before the first appointment of a Brother is made under this Scheme a notice specifying the qualifications required from candidates and the proper mode of applying for appointment shall be published in the Boroughs of Warwick and Stratford on Avon and in the Parishes of Kenilworth, Wotton under Edge and Arlingham in such manner as the Governors consider best calculated to bring the notice to the knowledge of persons qualified for appointment. Similar notices shall be published at intervals of not more than three years.

49. *Applications for appointment.*—All applications for appointment shall be made in writing in such manner as the Governors direct to the Governors or their clerk. Before appointing any applicant to be a Brother the Governors shall require him to attend in person unless he is disabled or the Governors are of opinion that special circumstances render this unnecessary. Every applicant must be prepared with sufficient testimonials and other evidence of his qualification for appointment.

50. *Selection of Brethren.*—Brethren shall be selected only after full investigation of the character and circumstances of the applicants.

51. *Records.*—The Governors shall provide and keep a book in which shall be entered the name, age and description of every person appointed to be a Brother, the date of every appointment and the date and occasion of every vacancy. They shall also keep a register of all applications for appointment.

52. *Occupation of quarters.*—(1) The Brethren shall occupy the Brethren's Quarters free of rent and without liability for rates, repairs and insurance.

(2) No Brother shall let or part with the possession of his quarters or any part thereof.

(3) The Governors shall permit any Brother who is a married man at the time of appointment to share the occupation of his quarters with the woman who is then his wife.

(4) The Governors may at their discretion permit—

(a) Any married Brother to share the occupation of his quarters with his wife;

(b) Any other Brother to share the occupation of his quarters with his mother, sister or daughter.

(5) Save as aforesaid no person who is not a Brother shall reside in the Brethren's Quarters.

(6) Every person sharing the occupation of a Brother's quarters under the provisions of this clause shall be required to vacate the same within one month of the Brother's death.

53. *Absence from Brethren's Quarters.*—(1) No Brother shall be absent from the Brethren's Quarters for a period exceeding 72 hours without such consent as is hereinafter mentioned that is to say:—

(a) in the case of an absence for a period not exceeding 10 days and not amounting with previous periods of absence during the same year to more than 21 days, without the consent of the Master or some person for the time being authorised by the Governors to give such consent;

(b) in the case of any other absence, without the consent of the Governors.

(2) Whenever a Brother intends to be absent from the Brethren's Quarters at night he shall so inform the Master or such authorised person as aforesaid.

54. *Removal of Brethren.*—(1) The following persons may be removed from being Brethren:—

(a) Any Brother who in the opinion of the Governors is guilty of insobriety, insubordination, breach of regulations or immoral or improper conduct;

(b) Any Brother who in the opinion of the Governors no longer has the required qualifications;

(c) Any Brother who has been appointed without having the required qualifications;

(d) Any Brother who is suffering from mental or other disease or infirmity rendering him unfit to remain a Brother.

(2) Upon the removal of any Brother the Governors shall take possession of the quarters occupied by him.

(3) Any Brother removed under sub-clause (1) of this clause on account of mental or other disease or infirmity may be reappointed on recovery without previous notice being given of the vacancy.

55. *Regulations.*—The Governors may from time to time make or approve such reasonable regulations as they consider expedient for the use of the buildings and other property of the Hospital and the conduct of the Brethren: Provided that no such regulation shall be at variance or inconsistent with any of the provisions of this Scheme.

GENERAL PROVISIONS

56. *Governors not to be personally interested.*—No Governor shall take or hold any interest in property belonging to the Charity otherwise than as a trustee for the purpose thereof and no Governor shall receive any remuneration, or be interested in the supply of work or goods, at the cost of the Charity.

57. *Charity not to relieve public funds.*—The funds or income of the Charity shall not in any case be applied in relief of rates, taxes or other public funds.

58. *Alteration of Scheme.*—The Charity Commissioners in the exercise of their ordinary jurisdiction may establish from time to time Schemes for the alteration of any of the provisions of this Scheme as if those provisions had been made by the founder in the case of a Charity having a founder.

59. *Questions under Scheme.*—Any question as to the construction of this Scheme or as to the regularity or the validity of any acts done or about to be done under this Scheme shall be determined by the Charity Commissioners upon such application made to them for the purpose as they think sufficient.

60. *Date of Scheme.*—The date of this Scheme shall be the date of the Act of Parliament confirming the same.

SCHEDULE

The following land and buildings situate in the Borough of Warwick:—

1. Land having a frontage on the south-east to High Street extending from West Gate to 58 High Street hereinafter mentioned, with the buildings thereon known as St. James's Chapel and the Earl of Leicester's Hospital (comprising the Guildhall, King James's Hall, the Master's Lodge, Brethren's Quarters and the messuages formerly known as the Anchor Inn and the Malt House).

2. Garden ground situate at the rear of the Master's Lodge above mentioned and comprising the Master's upper garden and the Brethren's garden.

3. Land containing 365 square yards or thereabouts having a frontage to High Street and adjoining the north-east side of the land numbered 1 above, with the cottages thereon known as 56 and 58 High Street, being the property comprised in a conveyance made the 24th December 1934 between The Right Honourable Eliza Maria Baroness De L'Isle and Dudley and another of the one part and The Master and Brethren of the Hospital of Robert Earl of Leicester of the other part and recorded in the books of the Charity Commissioners on the 22nd January 1935 pursuant to the provisions of section 29 (4) of the Settled Land Act, 1925, of which property part is appropriated for use as Brethren's quarters and the residue is let to Jocelyn Morris and John Richard Vincent at the yearly rents of £26 and £39 respectively.

4. Land containing 1,392 square yards or thereabouts having a frontage to High Street and a return frontage to Brook Street and adjoining the north-east side of the lands numbered 2 and 3 above, with the dwellinghouses known as 54 High Street and 1, 1A and 7 Brook Street and two garages on the south-easterly part thereof and consisting as to the north-westerly part thereof of a walled garden, being the property comprised in a conveyance made the 15th March 1945 between the parties aforesaid and recorded as aforesaid on the 4th April 1945, of which property 54 High Street and 1A and 7 Brook Street are now let to Wilfred

Herbert Jauncey, Phillip Andrew Donellan and Charles McGrouther as weekly tenants at the yearly rents of £35 19s. 4d., £26 and £26 respectively, 1 Brook Street is now let to Winifred Potter as quarterly tenant at the yearly rent of £30 and a garage is now let to the said Wilfred Herbert Jauncey at the yearly rent of £6 10s.

5. Land containing 312 square yards or thereabouts having a frontage to Brook Street and adjoining the north-west side of 7 Brook Street aforesaid being the site of four demolished cottages formerly known as 9, 11, 13 and 15 Brook Street, being the land comprised in a conveyance made the 9th July 1951 between Hilda Blanche Lewis and two others of the one part and the Master and Brethren of the Hospital of Robert Dudley Earl of Leycester in Warwick of the other part and recorded as aforesaid on the 8th November 1955.

6. Land having a frontage to Brook Street and adjoining the north-east side of the walled garden above mentioned, and the dwellinghouses thereon known as 21 and 23 Brook Street, being the property comprised in a conveyance made the 20th January 1954 between John Reginald Parkes Smith and another of the one part and the Hospital of Robert Dudley Earl of Leycester in Warwick of the other part and recorded as aforesaid on the 8th November 1955, the said dwellinghouses being now let to Hilda Hambler and Harry William Amison as weekly tenants at the yearly rents of £22 10s. 8d. and £32 10s. respectively.

7. Land containing 150 square yards or thereabouts having a frontage on the west to Brook Street being the site on which formerly stood the cottages known as 17 and 19 Brook Street being the land comprised in a conveyance made the 10th August 1955 between The Official Trustee of Charity Lands of the first part The Reverend Joseph McCulloch and ten others of the second part and The Master and Brethren of the Hospital of Robert Dudley Earl of Leycester in Warwick of the third part and recorded as aforesaid on the 8th November 1955.

Land situate in the Parish of Napton on the Hill in the County of Warwick now let to the British Transport Commission at the yearly rent of £11 15s.

The following investments standing in the name of The Official Trustees of Charitable Funds:—

£46,280 16s. 9d. 2½ per cent. Consolidated Stock.

£310 1s. 6d. 2½ per cent. Consolidated Stock (Income Fund).

£19,356 16s. 8d. 3 per cent. Redemption Stock, 1986–96.

£2,037 3s. 10d. 3½ per cent. War Stock.

£1,500 3 per cent. Savings Bonds, 1960–70.

£847 6s. 5d. British Transport 3 per cent. Guaranteed Stock, 1978–88.

Louisa Helen Trollope Gift

Land known as the Master's lower garden containing 709 square yards or thereabouts having a frontage on the south-west to Bowling Green Street in the Borough of Warwick and bounded on the north-east by the Master's house and upper garden above mentioned, being the land comprised in the above-mentioned deed of gift dated the 16th December 1901 made between Louisa Helen Trollope of the one part and the Master and Brethren of the Hospital of Robert Earl of Leicester of the other part and enrolled in the Central Office of the Supreme Court of Judicature on the 17th December 1901.

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CHAPTER lvi

An Act to confirm a Scheme of the Charity Commissioners for the application or management of the Charity called Sutton's Hospital in Charterhouse in the County of London.
[5th July 1956.]

WHEREAS the Charity Commissioners in their Report to Her Majesty of their proceedings during the year one thousand nine hundred and fifty-five reported that they had approved and certified a scheme for the application or management of the Charity called Sutton's Hospital in Charterhouse in the County of London:

And whereas it is expedient that the Scheme as the same is fully set out and defined in the Schedule to this Act should be confirmed:

Be it therefore enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The said Scheme is hereby confirmed:

Confirmation
of Scheme.

Provided always that nothing in this Act or in the said Scheme shall be held to interfere with the ordinary jurisdiction over endowed charities now exercisable by the High Court of Justice and the Charity Commissioners.

2. This Act may be cited as the Sutton's Hospital (Charterhouse) Charity Scheme Confirmation Act 1956. Short Title.

SCHEDULE

SCHEME FOR THE APPLICATION OR MANAGEMENT OF THE CHARITY CALLED SUTTON'S HOSPITAL IN CHARTERHOUSE, IN THE COUNTY OF LONDON, COMPRISED IN A SCHEME OF THE CHARITY COMMISSIONERS OF THE 5TH MARCH 1929 AS VARIED BY SCHEMES OF THE SAID COMMISSIONERS OF THE 29TH AUGUST 1939 AND 15TH MAY 1953 AND IN A SCHEME OF THE SAID COMMISSIONERS OF THE 20TH DECEMBER 1946 CONFIRMED BY THE SUTTON'S HOSPITAL IN CHARTERHOUSE CHARITY SCHEME CONFIRMATION ACT, 1948.

1. In this Scheme, unless the context otherwise requires, the following expressions shall have the following meanings:—

The expression "the Charity" shall mean the above-mentioned Charity originally incorporated, under the name of the Hospital of King James founded in Charterhouse within the County of Middlesex at the humble petition and only costs and charges of Thomas Sutton Esquire, by Letters Patent granted on the 22nd June, 9 Jac. I, as confirmed by an Act of Parliament of 3 Car. I, and comprised in the said Act, an Act of Parliament of 8 Geo. I, c. xxix, and section 29 of the Public Schools Act, 1868 (exclusive of the educational endowment called the Charterhouse School, being the part of the original foundation determined by an Order of the Charity Commissioners of the 14th November 1905 to be held for solely educational purposes), which charity (exclusive as aforesaid) is now commonly called Sutton's Hospital in Charterhouse;

The expression "the Governors" shall mean the body corporate called the Governors of Sutton's Hospital in Charterhouse.

2. Notwithstanding the provisions to the contrary contained in the Act of Parliament of 3 Car. I the Governors may let from time to time any of the property belonging to the Charity and not for the time being required for occupation for the purposes thereof at the best rent that can reasonably be obtained therefor. The Governors shall not create any tenancy in reversion after more than three years of any existing term or for more than 21 years certain or for less than the improved annual value at rackrent without the sanction of the Charity Commissioners or a competent court.

3. The date of this Scheme shall be the date of the Act of Parliament confirming the same.

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